

EFC CONGRESS 2026 – ANTONY – PROPOSED CHANGES TO STATUTES AND INTERNAL RULES BY THE LEGAL COMMISSION

I. STATUTES

PROPOSAL 1 – VOTING PROCESS – DELIBERATIONS

Proposal

It is proposed to add a new article 4.10 to the Statutes stating the following:

“4.10. Discussions, debates or deliberations about items in the Agenda of Congress must take place and terminate prior to the vote of each item. No further discussions, debates or deliberations shall take place after commencement of the casting of votes.”

Former article 4.10 and all articles thereafter, except expressly proposed otherwise below, shall remain unchanged, but the numbering shall be adapted accordingly.

Justification

This proposal seeks providing legal certainty and ensuring orderly conduct of voting procedures, thus avoiding conflictive situations where Congress participants may try to influence others or further insist on discussing a topic after a vote has commenced.

PROPOSAL 2 - ELECTIONS TO PRESIDENCY - VOTING IN SUCCESSIVE ROUNDS

Proposal

It is proposed to modify article 5.8 of the Statutes as follows (proposed change in red):

5.8 If no candidate receives an absolute majority of the votes cast in the first round of voting, **and if more than two candidates stand for election**, the candidate with the fewest votes is eliminated, leading to an additional round being organised.

Justification

This proposal seeks rendering the drafting clearer and more unambiguous, as it could otherwise be sustained that this article could be applied to cases where only two candidates stand for election.

PROPOSAL 3 – LOSS OF MEMBERSHIP – HARM TO REPUTATION OR VALUES OF THE EFC

Proposal

It is proposed to add article 2.13.4 to the Statutes stating the following:

2.13.4 Where the conduct, activities, statements or declarations of a Member Federation constitute a breach of the law, violate the core principles and values of the EFC or may seriously harm the reputation or public perception of the latter. In this case, the Executive Committee may decide for a temporary suspension of the Member Federation after an unsuccessful prior warning issued by the President, and subject to confirmation of the exclusion decision by absolute majority vote by Congress. Statements of the President of a Member Federation and or members of the leading body of that Member Federation as well as statements issued on the official website or social media presence of that Member Federation are considered as statements of the concerned Member Federation.

Justification

This proposal seeks providing for cases where Member Federations partaking in activities of the EFC evidence conduct or activities which could be considered illegal or detrimental to the reputation of the European Fencing Confederation. This provision becomes particularly important in light of accrued social media activity of Member Federations, and in order to prevent indirect liability of the European Fencing Confederation due to conducts of Member Federations.

II. INTERNAL RULES

PROPOSAL 1 – SUSPENSION OF LICENSES

Proposal

It is proposed to add section “SUSPENSION AND CANCELLATION OF LICENSES” under article 1 of the Internal Rules. This section shall include articles 1.32 to 1.33 drafted as follows:

1.32. Where the conduct, activities, statements or declarations of a fencer, coach, referee, or licensee constitute a breach of the law, violate the core principles and values of the EFC or may seriously harm the reputation or public perception of the latter, the Executive Committee may decide for a temporary suspension of up to six (6) months of the fencer, coach or licensee after an unsuccessful prior written warning to the attention of the fencer or licensee and the Federation he/she belongs to issued by the President.

1.33 The Executive Committee may decide to revoke and cancel a license without restitution of the paid fee following a second unsuccessful written warning to the attention of the fencer, coach or licensee and the Federation he/she belongs to issued by the President.

Justification

This proposal seeks providing for cases where fencers, coaches or licensees evidence conduct or activities which could be considered illegal or detrimental to the reputation of the European Fencing Confederation. This provision becomes particularly important in light of accrued social media activity of fencers, coaches or licensees and Member Federations, and in order to prevent indirect liability of the European Fencing Confederation due to conducts of Member Federations.

PROPOSAL 2 – CONDUCT OF SECRET VOTES

Proposal

It is proposed to add a new article 2.9 to the Internal Rules as follows:

2.9 Notwithstanding the above, a secret vote may be conducted for any item of the Agenda upon simple request of at least one (1) delegate submitted prior to commencement of the vote about the concerned item. Consequently, the same item may not be subject to vote by show of hands and secret ballot.

Former article 2.9 and all articles thereafter, except expressly proposed otherwise below, shall remain unchanged, but the numbering shall be adapted accordingly.

Justification

This proposal seeks clearly defining the conditions under which a secret vote is possible, in particular specifying the moment until which a secret vote may be requested. It is further proposed to lay down in the internal rules that it is not possible to hold an open vote and a secret vote on the same subject in order to preserve legality and orderly proceedings of the

voting process. It is suggested that the secret vote may only be requested prior to commencement of the vote in order to ensure that the delegate/s requesting a secret vote dispose of all necessary information to make the decision to request a secret vote.

PROPOSAL 3 – VOTING ON SEVERAL OPTIONS

Proposal

It is proposed to add a new article 2.12 to the Internal Rules as follows:

2.12.i. Where three or more options are presented for selection as host of a European Championship or other official competitions of the EFC, the vote shall be conducted in successive elimination rounds where the option with the least casted votes in each round will be eliminated until two options for vote remain. For the final round of vote, simple majority shall be achieved. Should there be a tie between the two remaining options, the vote shall be determined by lot conducted by the Chair of the Election Commission.

2.12.ii. Except expressly stated otherwise in the Statutes, where several options are presented for vote regarding one agenda item, only one round of voting, where Member Federations shall cast exactly one vote for their preferred option, shall take place. For this vote, simple majority shall be achieved. If no option reaches a simple majority, the proposals shall be considered not adopted and the existing situation shall be maintained. Should there be a tie between two or more options, the vote shall be determined by lot conducted by the Chair of the Election Commission.

Former article 2.12 and all articles thereafter, except expressly proposed otherwise, shall remain unchanged, but the numbering shall be adapted accordingly.

Justification

This proposal seeks providing legal certainty and ensuring orderly conduct of voting procedures, thus avoiding situations not covered by the Statutes and Internal Rules. This effectively guarantees a more democratic and transparent voting approach.

PROPOSAL 4 – MANDATORY COMMISSIONS – RESIGNATION FOR INACTIVITY

Proposal

It is proposed to add new articles 5.10 to articles 5.12 to the Internal Rules as follows:

5.10. Vacancies — Mandatory Commissions

A vacancy in a Mandatory Commission as defined under Article 9 of the Statutes arises where a Commission Member:

- a) resigns from their appointment by written notice to the Commission President and the General Secretary, effective on the date of receipt of the Notice by the Commission President or any later date specified therein;
- b) dies; or
- c) is deemed to have resigned pursuant to Article 5.11.

5.11. Resignation

1. A member of a Mandatory Commission who displays inactivity in his/her role within the Mandatory Commission may be subject to a formal written warning detailing the nature of incurred inactivity from the Commission President. Inactivity shall be considered, but is not limited to the following cases:
 - a) Where a member of a Mandatory Commission is absent from two consecutive meetings of their Mandatory Commission without prior written notice of absence to the attention of the Commission President;
 - b) Where a member of a Mandatory Commission is absent from 25% or more (rounded to the nearest whole number) of the meetings of his/her Mandatory Commission within one (1) calendar year counted from 1st January until 31st December.
 - c) Where a member of a Mandatory Commission fails twice or more within a calendar year as defined above to deliver requested opinions, research, statements or any other product within the agreed time limit.
2. Where relevant, and upon detailed justification, a Commission President may issue warnings on grounds other than those detailed in letters a) to c) above.
3. A member of a Mandatory Commission who, following the issuance of a formal warning under paragraph 1 persists in inactive conduct (i.e, unjustified absence from one further meeting for letter a) above, sustained absence from 25% of the meetings during the six (6) months following issue of the warning for letter b) above or fails to deliver requested opinions, research, statements or any other product within the agreed time limit during the six (6) months following issue of the warning for letter c)) shall be considered resigned.
4. The Commission President shall notify the resigned member of the Mandatory Commission, the Secretary General and the Member Federation to which the resigned member of the Mandatory Commission belongs in writing within fifteen (15) calendar days from the date on which the resignation under paragraph 1 has occurred. Failure to comply with this time limit shall constitute a waiver of the grounds for resignation, the concerned Mandatory Commission Member therefore being considered as not resigned.
5. For the avoidance of doubt, the provisions of articles 5.10, 5.11 and 5.12 do not apply to the Athletes Commission.

5.12. Filling of vacancies

1. A Vacancy, as defined under Article 5.10, shall be filled as follows:
 - a) If a number of Candidates exceeding the number of members of the concerned Mandatory Commission applied to the Mandatory Commission having a vacancy, the President of the Mandatory Commission shall contact all Candidates not having been selected to the Mandatory Commission and invite them to confirm their initial application within a time limit of 15 calendar days from the date of the invitation. The President of the Mandatory Commission shall then select and propose to the Executive Committee a Candidate among the confirmed applications to become a Member of the Commission;
 - b) Where no Candidate confirms their initial application or if the number of Candidates having applied to a Mandatory Commission does not exceed the number of members of the Mandatory Commission, the Secretary General shall issue a call for applications to all unsuspended and fully paid-up Member Federations to propose Candidates for the vacant position. Member Federations shall submit proposals within the time limit and following the administrative provisions established in the call for applications. The President of the Mandatory Commission shall then examine all received applications, select a Candidate among the received applications and propose said Candidate to the Executive Committee;

- c) Together with his/her proposal, the President of the Mandatory Commission may constitute a reserve list of Candidates selected among the Candidates having been proposed by Member Federations in response to the Call for Applications. If the proposed Candidate is not accepted by the Executive Committee or does for any other reason not accept to take part in the Commission, the next Candidate on the reserve list shall be proposed until a Candidate is accepted by the Executive Committee and effectively takes up office.
2. Nominated Candidates must satisfy the eligibility requirements established in the Statutes and applicable to the Mandatory Commission having a vacancy at the closing date for applications established in the call for applications, and the Member Federations submitting applications must dispose of their full and unconditional membership rights at that time.
3. The Executive Committee shall appoint the proposed Candidate or reject the Candidate no later than **14 calendar days** after the submission of the proposal by the President of the Mandatory Commission.
4. A member of a Mandatory Commission appointed in order to fill a vacancy shall hold office for the remainder of the term of the resigned member of a Mandatory Commission.

Former articles 5.10 to 5.12 and all articles thereafter, except expressly proposed otherwise, shall remain unchanged, but the numbering shall be adapted accordingly.

Justification

This proposal is made to provide a framework for situations where members of Mandatory Commissions cannot, do not want to or actively do not pursue their activities within the Mandatory Commission. The proposal envisages taking into consideration candidates not selected during the initial application period in order to form reserve lists, therefore effectively allowing for smooth operations of all Mandatory Commissions.